

DEGUP PLT

PATIENT TERMS, PRIVACY NOTICE AND CONSENT

1. PURPOSE AND ROLE OF DEGUP

- 1.1** These Patient Terms, Privacy Notice and Consent (“Terms”) govern how DEGUP PLT (“DEGUP”, “we”, “us”) provides patient navigation and matching services to you (“you” or “Patient”) through its digital platform (the “Platform”), and set out our notice to you under the Personal Data Protection Act 2010 [Act 709] (“PDPA”).
- 1.2** DEGUP helps connect you with independent dialysis centres participating on the Platform (“Participating Centres”). We do not provide dialysis treatment or any clinical service. All clinical assessment, acceptance, admission and treatment decisions remain the sole responsibility of the relevant Participating Centre. “Matching” means DEGUP’s process of connecting you with a Participating Centre based on non-clinical information such as your location, dialysis schedule, modality and availability. This may include “Transit Matching” for temporary or one-off dialysis sessions, or “Admission Matching” for admission and ongoing dialysis treatment. Matching is administrative only and does not involve any assessment of your medical suitability, which remains the Participating Centre’s responsibility.

2. OUR SERVICES AND HOW MATCHING WORKS

- 2.1** Our Services include: navigation and Matching; sharing information about Participating Centres (location, hours, slots, schedules, prices, funding arrangements); facilitating non-clinical communication; and facilitating booking and related administrative coordination, including onboarding and non-clinical admission documentation where necessary.
- 2.2** Matching considers factors such as your location, preferred schedule, dialysis modality, funding arrangements (which, for Admission Matching, may include categories such as PERKESO, Zakat, JPA or other arrangements you and the Centre agree) and other non-clinical preferences you share with us. Approval under any funding category is decided solely by the relevant funding body and the Participating Centre, and DEGUP does not control or guarantee such approval. Matching is administrative and facilitative only. It is not medical advice, diagnosis, clinical assessment, a determination of clinical suitability, admission or treatment, and does not guarantee that a Centre will accept or admit you, that a slot will be available, or any treatment outcome. Whether you are accepted for treatment is decided solely by the relevant Participating Centre.
- 2.3** A patient may be matched to a Participating Centre through DEGUP, whether via the Platform, WhatsApp, telephone, SMS, email, an existing DEGUP patient, a healthcare professional, the patient’s Representative, or any other person connected with DEGUP’s patient network. Any patient matched through DEGUP or by an existing DEGUP patient shall be deemed a DEGUP patient and regarded as matched through DEGUP’s services.
- 2.4** Where an introduction is made by an existing DEGUP patient, healthcare professional or other person connected with DEGUP’s patient network, that person acts independently and is not DEGUP’s employee or agent. DEGUP is not responsible for representations or information provided by such person unless expressly authorised by DEGUP.

- 2.5** A dialysis slot is confirmed only once the relevant Participating Centre confirms it. Cancellation, rescheduling, attendance and payment requirements set by a Centre remain your responsibility, and we are not responsible for a Centre's cancellation, change or withdrawal of a slot.
- 2.6** If you need temporary or transit dialysis away from your regular Participating Centre, for example due to travel, work or a holiday, we can help coordinate an appropriate transit dialysis centre for you. A temporary transit arrangement does not transfer you away from your regular Participating Centre, and you remain free to continue your regular treatment there once the temporary need ends. You are always free to choose or change your dialysis provider; nothing in these Terms or in our arrangements with any Centre restricts that choice.

3. RESPONSIBILITIES OF PARTICIPATING CENTRES

- 3.1** Each Participating Centre is an independent, licensed healthcare provider solely responsible for: assessing your clinical suitability; deciding whether to accept or admit you; providing treatment and healthcare services; engaging qualified staff; maintaining its premises and equipment; making all clinical decisions; ensuring patient safety and appropriate standards of care; and holding all licences, registrations and approvals, and maintaining adequate professional indemnity insurance, as required by law.
- 3.2** We do not supervise, direct or control any Participating Centre's clinical operations, and make no representation as to a Centre's licensing, accreditation, staffing or standard of care. Please make your own enquiries of a Centre before accepting treatment. Nothing in these Terms creates any employment, partnership, agency or joint venture relationship between DEGUP and a Participating Centre.
- 3.3** A Participating Centre may discontinue, suspend or materially change your dialysis treatment where reasonably necessary, including for clinical, safety, payment, operational, funding or legal reasons. Where the Centre intends to do so, it will provide you and DEGUP with at least thirty (30) days' prior written notice where reasonably practicable, unless a shorter period or immediate action is required by the circumstances. DEGUP will use reasonable efforts to assist you in exploring alternative treatment arrangements or matching you with another Participating Centre, subject to availability, eligibility and acceptance by the relevant Centre.
- 3.4** Commitments described in these Terms regarding the conduct of Participating Centres, including the notice and continuity arrangements in Clause 3.3, are based on contractual undertakings obtained by DEGUP from Participating Centres as a condition of participation on the Platform. DEGUP will use reasonable efforts to facilitate or enforce these undertakings, but does not control the day-to-day operations of Participating Centres and cannot guarantee their compliance in every instance.

4. YOUR INFORMATION AND ITS ACCURACY

- 4.1** Please provide information that is true, accurate, complete and not misleading, and notify us promptly of any material change. We rely on the information you give us to provide the Services and are not responsible for any loss to the extent it arises from information that is inaccurate, incomplete or outdated. Detailed clinical information needed for assessment or treatment should, where appropriate, be given directly to the relevant Participating Centre, which is likewise responsible for the accuracy of information it gives us.

5. YOUR PERSONAL DATA, HEALTH INFORMATION AND YOUR RIGHTS

- 5.1** We collect, use, disclose, retain and process your personal data, which under the PDPA may include your name, identification and contact details, location, preferred dialysis schedule, dialysis modality, current dialysis status, funding or payment information, health information, Centre preferences and booking and communication records, for purposes reasonably necessary to provide and administer the Services, in accordance with the PDPA. We collect only what is adequate, relevant and not excessive for that purpose.
- 5.2** Your health information may constitute sensitive personal data under the PDPA. DEGUP will process such information only with your explicit consent or where otherwise permitted under the PDPA, and only to the extent reasonably necessary for the Services. DEGUP does not make clinical decisions based on your health information and is not responsible for the clinical decisions or treatment provided by a Participating Centre.
- 5.3** We may disclose relevant personal data, including health information where applicable, to Participating Centres for matching, availability checks, communication, booking and coordination of your care; to our technology, hosting, communication and administrative service providers, and to professional advisers, insurers or successors where reasonably necessary; and where required or permitted by law or necessary for safety. Your data may also be transferred to or processed by service providers outside Malaysia, including messaging, email, cloud and other technology platforms, in accordance with the PDPA. All disclosures will be limited to what is reasonably necessary for the relevant purpose. A Participating Centre may use your data only for assessing, admitting and treating you, and not for its own marketing or other purposes without your further consent.
- 5.4** We keep your personal data only for as long as reasonably necessary for the purposes described in these Terms or as required by law. We take reasonable technical and organisational measures to protect your data against loss, misuse, unauthorised access or disclosure. If we become aware of a data breach affecting your personal data, we will take appropriate steps and respond in accordance with the PDPA.
- 5.5** Subject to applicable law, you may request access to or correction of your personal data, withdraw consent for a particular purpose, or exercise other PDPA rights, by writing to hello@degup.my. We may verify your identity first, and may charge a reasonable fee for an access request where the PDPA allows. If you withdraw consent needed for a Service, we may no longer be able to provide it, and will tell you if so.

6. HOW WE COMMUNICATE, AND YOUR OPTIONAL CONSENTS

- 6.1** We may contact you by telephone, SMS, email, WhatsApp or other communication channels for matters relating to Matching, availability, bookings, follow-up and administration. Communications through third-party platforms are subject to their own terms and privacy practices and may involve processing or storage outside Malaysia. Notwithstanding this, DEGUP will take reasonable steps to use such communication channels appropriately and handle your personal data in accordance with the PDPA
- 6.2** The following are entirely optional and are never a condition of receiving our Services. You may give or withhold consent in Clause 10, and withdraw it at any time by writing to hello@degup.my, free of charge:
- (a) Marketing communications about our Services;

- (b) Use of your photograph, video, name, likeness, testimonial or patient story for marketing, promotional, educational, awareness or public communication purposes, which may reveal health-related information and may be sensitive personal data under the PDPA (withdrawal applies to future use only and will not affect material already lawfully published); and
- (c) Use of your personal data for research, analytics and impact reporting, where the purpose has been explained to you. Where reasonably possible, DEGUP will use anonymised or aggregated data for these purposes and will use identifiable data only where reasonably necessary and covered by your consent.

7. HOW DEGUP IS PAID

- 7.1** DEGUP receives a matching fee from the Participating Centre when a match arranged by DEGUP results in a completed dialysis session or admission. You are not charged by DEGUP for using the Platform or being matched. The Participating Centre independently determines its own treatment charges and DEGUP is not responsible for or involved in setting those charges.

8. REPRESENTATIVES AND COMPLAINTS

- 8.1** If you are a minor or otherwise unable to understand or give consent, these Terms and the consent in Clause 10 must be completed and signed by your lawfully authorised Representative, who confirms their authority and agrees to be bound accordingly. DEGUP may request reasonable documentation evidencing the Representative's identity, relationship or legal authority, including identification, a guardianship order or power of attorney, before accepting consent or processing your personal data on this basis.
- 8.2** Complaints about our Matching, booking or administrative services may be sent to us at hello@degup.my. Complaints about clinical treatment, medical decisions or patient care should be directed to the relevant Participating Centre; we may assist with communication or escalation but are not responsible for the outcome.

9. LIABILITY, WARRANTIES AND GENERAL TERMS

- 9.1** DEGUP provides a technology platform and facilitation service only and is not responsible for the clinical decisions, treatment, injury, treatment outcomes, professional negligence, staffing, equipment, patient acceptance or rejection, or cancellation or unavailability of treatment by a Participating Centre. To the fullest extent permitted by law, DEGUP's total liability arising from or in connection with the Services shall not exceed RM1,000. You agree to indemnify DEGUP against losses arising from your breach of these Terms or any false or misleading information provided by you. Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited, including liability for death or personal injury caused by DEGUP's negligence or for fraud.
- 9.2** The Platform and Services are provided on an as-is, as-available basis, without warranty as to accuracy, completeness or availability, to the fullest extent the law allows. We may suspend or end your access if you breach these Terms, provide false information, or act in a way we reasonably consider abusive, fraudulent or harmful; you may stop using the Services at any time by telling us.
- 9.3** We may amend these Terms from time to time and will give you at least fourteen (14) days' notice of any material changes by email, WhatsApp or Platform notification before they take effect. If any provision is found invalid, the remaining provisions will continue to apply. These Terms constitute the entire agreement between you and DEGUP on this subject. We may

transfer our rights and obligations in connection with a merger, acquisition or business transfer without reducing your rights under the PDPA. We are not responsible for delays caused by circumstances beyond our reasonable control. Notices should be given in writing through the contact details provided.

9.4 These Terms are governed by the laws of Malaysia, and the Malaysian courts have exclusive jurisdiction over any related dispute.

10. YOUR CONSENT AND ACKNOWLEDGEMENT

By signing or electronically accepting these Terms, you confirm that you have read and understood them; that you consent to DEGUP collecting, using, processing and disclosing your personal data, including health information where applicable, as described above and in accordance with the PDPA; that you authorise DEGUP to disclose relevant personal data and health information to Participating Centres for Matching, communication, availability checks, booking and coordinating your care; and that you understand DEGUP is not your healthcare provider, the relevant Participating Centre being solely responsible for your clinical assessment, admission, treatment and care.

The core consent above is necessary for DEGUP to provide the Services. If you do not provide this consent, DEGUP may not be able to match you with a Participating Centre or provide the relevant Services. The choices below are optional, and declining any of them will not affect the core Services DEGUP provides.

☐ I consent to receiving marketing and promotional communications from DEGUP. ☐ I do not consent.

☐ I consent to DEGUP using my photograph, video, likeness, name and patient story or testimonial as described in Clause 6.2(b). ☐ I do not consent.

☐ I consent to DEGUP using my personal data for research, analytics and impact reporting as described in Clause 6.2(c). ☐ I do not consent.

YOUR DETAILS

Full Name :
NRIC / Passport No. :
Contact No. :
Email Address :
Relationship to Patient :
(if signing as Representative)
Signature / Electronic Acceptance :
Date :